Alabama Rules of Criminal Procedure

Rule 17. Subpoenas.

Rule 17.6. Application to municipal courts.

The provisions of this rule shall be applicable in municipal court; however, service shall be made by a law enforcement officer of the municipality or the sheriff of the county in which the party to be served resides or may be found.

Committee Comments

Rule 17.6 is not intended to change present practice pursuant to Ala.Code 1975, § 12-14-4, which provides that both sheriffs and municipal law enforcement officers are authorized and required to faithfully execute "the warrants and processes committed to them for service" by a municipal judge. In the usual practice, municipal process will be served by municipal officers.